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Daily Editorial Summary

20th April 2026

Topics To be Covered:

- ✓ **Right to Be Forgotten (RTBF)**
- ✓ **Differentiating Welfare and Development**

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Topics

Right to Be Forgotten (RTBF)

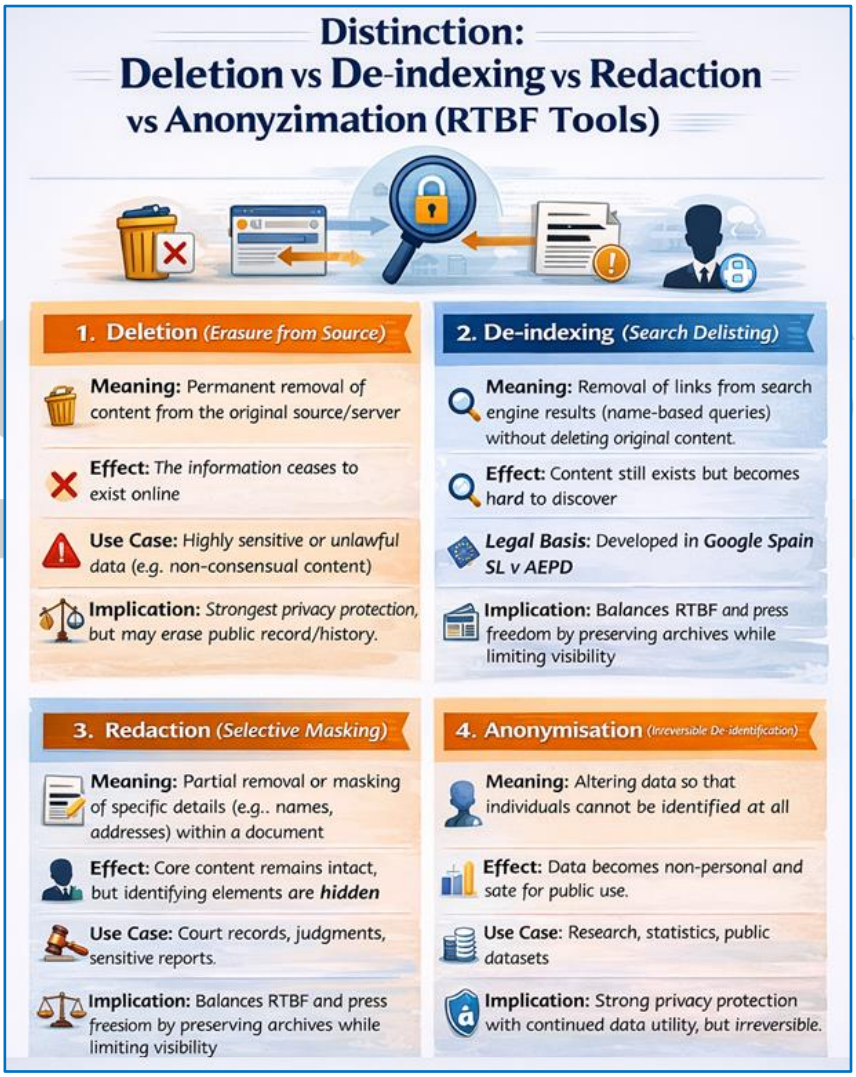
GS Paper II: Indian Constitution: Historical underpinnings, Evolution, Features, Amendments, Significant Provisions and Basic Structure

Context:

A financial journalist has challenged a Delhi court's **gag order** mandating **removal and de-indexing** of reports on the **Sterling Biotech bank fraud case**, highlighting the tension between the **Right to Be Forgotten (RTBF)** and **freedom of the press**.

Core Concepts- Digital Permanence vs. RTBF:

- **Digital Permanence:** Unlike the pre-digital era where physical files **naturally "faded away,"** the internet ensures that **old, negative,** or **false information remains accessible indefinitely**.
- **Definition of RTBF:** It involves the **deletion, de-indexing, or restriction** of personal data from digital platforms when it is outdated, irrelevant, or harmful to an individual's **privacy and reputation**.
- **Informational Self-Determination:** RTBF allows individuals to be "masters of their own data," ensuring that past "digital scars" do not cause lifelong trauma or hinder **Criminal Rehabilitation**.



Global Best Practices & Evolution:

- **European Union (GDPR):** Following the **Costeja Case (Google Spain)**, **Article 17** of the GDPR codified the **"Right to Erasure,"** though it excludes data relevant to journalism and public interest.
- **Canada (2023-2025):** The Federal Court confirmed that search engines are subject to privacy laws (**PIPEDA**). In 2025, the Privacy Commissioner upheld a limited right to **de-indexing** in specific harm-based cases.
- **United States (California):** Evolved from the **Online Eraser Law** (2015) for minors to the **DELETE Act (2023)**, which allows adults to request data deletion from **data brokers**.
- **UK & Japan:** Apply a **balancing test** to weigh individual privacy against the public's right to know.

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The Indian Legal Framework & Judicial Trend:

- **Constitutional Basis:** Flows from the **Right to Privacy** under **Article 21** (*K.S. Puttaswamy Case, 2017*). It must be balanced against **Article 19** (Freedom of Press).
- **Statutory Laws: DPDP Act 2023:** Provides for the **Right to Erasure**, though its application to **media archives** remains ambiguous.
  - **IT Rules 2021:** Mandate intermediaries to remove harmful content within **24 to 36 hours**.
- **"Swinging" Judicial Trend: Early:** Recognized the **"Right to be let alone"** (*R. Rajagopalan, 1994*).
  - **Middle:** Prioritized **public records** and transparency (*Dharmaraj Case, 2017*).
  - **Recent Pro-Privacy Shift:** Courts have ordered the redaction of names in **matrimonial disputes** (SC, 2022) and **rape cases post-acquittal** (HP High Court, 2024) to protect dignity.

Challenges and Risks:

- **Whitewashing History:** Critics fear **"digital book-burning"** where historical records of **financial fraud** are erased, preventing future due diligence.
- **SLAPP Suits & "John Doe" Traps:** Large corporations use **Strategic Lawsuits Against Public Participation**—often against "unknown persons" (**John Doe**)—to silence journalists without a fair hearing.
- **Settlement vs. Innocence:** RTBF is being increasingly used to treat a **legal settlement** as a "clean chit," potentially misleading the public record.
- **The Streisand Effect:** Attempting to hide information often triggers public curiosity, making it **more viral** than if it had been left alone.

Way Forward:

To ensure **Digital Constitutionalism**, India needs a calibrated approach:

- **Independent Adjudication:** The **Data Protection Board (DPB)** should handle RTBF claims to prevent inconsistent "gag orders" from local civil courts.
- **De-indexing over Deletion:** Preference should be given to making content **unsearchable** (de-indexing) while keeping the original report alive in **journalistic archives**.
- **Public Interest Exception:** Information involving **public money, health, or safety** must be shielded from erasure requests.

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- **Natural Justice:** Courts must ensure **prior notice** to media houses before enforcing takedown orders to prevent arbitrary censorship.

Conclusion:

The **Right to Be Forgotten (RTBF)** is essential to protect **individual dignity** in the digital age, but it must not undermine **transparency**. A **balanced test**—based on the **status of the person (public vs private)** and the **nature of information**—is necessary to safeguard **privacy** without erasing **public history**.

Mains Practice

Q. The Right to Be Forgotten operates at the complex intersection of informational self-determination and the freedom of the press. In light of recent judicial pronouncements, critically analyze whether India needs a statutory balancing test to prevent the misuse of RTBF through 'gag orders'. (250 Words, 15 Marks)

Differentiating Welfare and Development

GS Paper III: Indian Economy and Issues relating to Planning, Mobilization of Resources, Growth, Development and Employment

Context:

In Indian politics, **"Vikas"** often conflates **welfare** with **structural reform**, creating a **development paradox** where **visible growth** masks **persistent inequality**.

Differentiating Welfare and Development:

- **Welfare (Short-term/Consumption-oriented):** Refers to immediate, **redistributive interventions** designed to alleviate poverty and reduce vulnerability.
  - **Examples:** Free food, loan waivers, and **direct cash transfers**.
  - **Nature:** It provides immediate relief and supports consumption but does not necessarily expand the nation's **productive capacity**.
- **Development (Long-term/Production-oriented):** A broader, path-dependent process of **structural transformation** involving sustained economic growth and the expansion of **human capabilities**.
  - **Examples:** Quality schooling, public health systems, and **technological adoption**.
  - **Amartya Sen's Capability Approach:** True development focuses on expanding **human freedoms** (quality education and nutrition) rather than just **GDP quantity**, as growth alone does not guarantee equitable distribution.

The Tensions- Fiscal Constraints and "Revdi" Culture:

The primary challenge in balancing these objectives lies in the allocation of **limited tax resources**:

- **The "Crowding Out" Effect:** Excessive spending on populist welfare (**freebies**) can exhaust the state exchequer, leaving little room for **Capital Expenditure**. This **crowds out** essential funding for long-term development projects like schools and hospitals.
- **The "Revdi" Culture Debate:** Unconditional cash handouts are often criticized as a **parasitic approach** to welfare. While they offer high **electoral appeal**, they risk creating **long-term fiscal instability** without expanding productive capacity.
- **Public Goods and Positive Externalities:** Genuine development prioritizes **Public Goods** (e.g., law and order, clean air). These are **non-excludable** and produce strong **positive externalities**, strengthening the foundations of democracy.

Integration- A Complementary Model:

Welfare and development should be viewed as **complementary** rather than interchangeable.

- **The Mid-Day Meal Example:** This acts as a **welfare tool** (providing food) that enables **development** (improving school retention and long-term **learning outcomes**).

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- **Productive Safety Nets:** Well-designed schemes like **NREGA** or **PM-JAY** enhance human capabilities and reduce vulnerability, eventually feeding back into **economic productivity**.

Way Forward:

- **Fiscal Transparency:** Implementation of **Election Commission of India (ECI)** guidelines is necessary to ensure political parties disclose the **fiscal impact** of their promised freebies during elections.
- **Strategic Balancing:** Governments must maintain a balance between **short-term relief** and **long-term structural investment**. Welfare should serve as a bridge to development, not a substitute for it.
- **Civic Accountability:** The ultimate solution lies in creating an **educated and healthy citizenry** capable of holding the government accountable for **incremental progress** and **institutional consolidation** rather than just episodic gains.

Conclusion:

Conflating **welfare** with **development** prioritizes **short-term gains** over **economic capacity**. For **Viksit Bharat**, policies must be **fiscally sustainable** and ensure welfare **complements development**.

Mains Practice

Q. Conflating populist welfare promises with long-term development goals poses significant risks to India's fiscal sustainability and structural transformation. Critically analyse this statement in the context of the recent debates on the 'freebies' culture. (250 Words, 15 Marks)

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